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APPELLATE COURT

of the

State of Connecticut

Judicial District of Hartford

A.C. 46989

STATE OF CONNECTICUT

V.

ROBERT LEE NICHOLS

Brief of the State of Connecticut – Appellee

with attached appendix

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I. Nature of the proceedings

After the defendant, Robert Nichols, repeatedly slammed the minor victim against the floor and separately struck his head against a countertop, the State charged the defendant with one count of assault in the first degree, General Statutes § 53a-59(a)(3); and two counts of risk of injury; General Statutes § 53-21(a)(1). Clerk Appendix (C.App.), 10-11. Following a trial, on June 26, 2023, a jury found the defendant guilty as charged. Id., 8, 24. Thereafter, the trial court imposed a total effective sentence of 20 years of incarceration, execution suspended after 10 years, followed by 5 years of probation. Id., 8, 24.

II. Counterstatement of the facts

From the evidence presented at trial, and the inferences reasonably derived therefrom, the jury could have found the following:

The defendant was the pastor of a small congregation of six to ten people. T.6/20/23: 54-55. He and his wife also operated a daycare out of their Manchester home. Id., 64, 223.

Congregants of the defendant's church included DG, RG, and DH.[1] Id., 55. When they joined the church, DG and RG were a dating

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[1] In accordance with the policy of protecting the privacy interests of the victims of the crime of risk of injury, the State will decline to identify the victim or others through whom the victim's identity may be ascertained. See General Statutes § 54-86e; *State* v. *Charles L.*, 217 Conn. App. 380, 380 n.*, 288 A.3d 664, cert. denied, 346 Conn. 920, 291 A.3d 607 (2023). Additionally, because, as will be discussed infra, DH alleged that the defendant sexually assaulted her, in accordance with the policy of protecting the privacy interests of the victims of sexual assault, the State will decline to identify DH or others through whom her identity may be ascertained. See General Statutes § 54-86e; *State* v. *Nichols*, 226 Conn. App. 359, 361 n.3, 317 A.3d 861 (2024).

couple. Id., 56-57, 195-99. Approximately one year after joining the church, DG and RG married, and the defendant performed the ceremony. Id., 57, 196. Thereafter, the defendant conducted marital counseling sessions with them. Id., 59-62, 197-99. He also encouraged them to sever ties with their families. Id., 62, 199.

In October 2012, RG gave birth to a son, the victim. Id., 63, 200. At that time, both DG and RG were working, but were not making a substantial amount of money. Id., 63-64, 200. Therefore, they enrolled the victim in the defendant's daycare. Id., 64, 201. On the application form, the emergency contacts, other than DG and RG, were the defendant, the defendant's wife, and DH–all of whom worked at the daycare. Id., 66-68, 201, 203; State's Exhibit (St.Ex.) 1 (daycare form). The form also listed DH and the defendant's wife as individuals to whom their son could be released from the daycare. T.6/20/23: 67-68.

DG and RG paid for the defendant's daycare services either with money or by cleaning the defendant's home and receiving a credit toward the daycare costs. Id., 68-69, 201. During this time, the defendant and his wife were very controlling regarding how DG and RG provided for the victim, including reprimanding RG for the brand of yogurt that she fed him, the clothing he wore, and for continuing to breastfeed him and store breast milk for him. Id., 70-72.

The defendant and his wife sometimes watched the victim outside of the normal daycare hours. Id., 72. It was not uncommon for them to ask to keep the victim overnight. Id., 72. RG did not feel as though she could refuse these requests. Id., 72-73.

In August 2013, while RG was at work, she received a call asking her to pick up DG at his workplace because he was sick with a stomach ailment. Id., 73. At that time, the victim was at the defendant's daycare. Id. The defendant or his wife advised RG to take DG home, disinfect their residence, and pick up the victim after RG's illness had

passed. Id. RG, however, also fell ill and the victim remained at the daycare for approximately ten days.[2] Id., 73-75.

During this approximate ten-day period, DG and RG recovered from their illnesses and attended a service at the defendant's church. Id., 74. They anticipated seeing the victim at that time, but the defendant did not allow them to do so. Id. He told them that they were not going to get the victim back at that time because the victim was "rebellious." Id., 74, 204-05, 227-28. The defendant told RG that the victim's "rebellious behavior was because of [her], because [she] was rebellious, and [she] had passed that onto [her] son." Id., 75, 152-53, 205.

At that time, DH was living at the defendant's home and working for the daycare and as a personal assistant to the defendant and his wife in order to pay off debts that she owed them. T.6/21/23: 100-02, 122-25. The defendant and his wife had, in DH's eyes, become her spiritual parents to such an extent that she had begun calling them "dad" and "mom." Id., 109-10. They had driven a wedge between DH and her biological parents and, eventually, had adopted her as an adult. Id., 112-13, 121. DH also was engaging in sexual activity with the defendant and his wife. Id., 122.

Shortly after the victim began staying at the defendant's home, DH saw the defendant put the victim in a sink filled with cold water

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[2] DH testified that the victim's time at the defendant's home began on August 10, 2013. T.6/21/23: 127. The State presented a photograph that DH identified as depicting the victim and the defendant on the first day of the victim's time with them, which DH recalled had been taken at the Litchfield Jazz Festival. Id., 128-29, 186-87; St.Ex. 6. She recalled that the abuse started the following morning, August 11, 2013. T.6/21/23: 186-88.

and ice cubes. Id., 129. He also used a nozzle from the sink to spray water over the victim's head. Id. This caused the victim to flail about, gasp for air, and fall backward and bang his head on a granite countertop. Id., 129-30. DH recalled that the defendant had inflicted this as punishment because the nine-month-old victim was failing to follow the defendant's directions as he was trying to teach the victim how to walk. Id., 130. DH was told that the victim was being rebellious because of RG and had to be disciplined. Id. The defendant said that, "if he can't breathe, if he's fighting for his life, he can do it." Id.

DH also saw the defendant slap and hit the victim until he had bruises on his legs. Id., 130-31. She also observed the defendant swaddle the victim by forcefully putting him into a Pack n' Play with pillows on either side of him that forced him into an upright position. Id., 131. When the defendant forced the victim into the Pack n' Play, DH heard a "thud." Id., 131. The defendant then dragged the victim by his legs and left a rug burn on his head. Id., 131, 133-34. He also slammed the victim on the floor while he was swaddled three or four times with "a loud thud sound." Id., 131. DH recalled that these incidents occurred early during the victim's ten-day stay at the defendant's home. Id., 132.

After these events, the victim had bruises and marks on his head. Id. The defendant was concerned that RG would see the bruises, not "understand how necessary this was," and call a doctor. Id. Therefore, he decided to keep the victim at his home until the bruises healed. Id. The defendant also did not allow DH to take any photographs of the victim after the bruises appeared. Id., 132-33.

After approximately ten days, the defendant returned the victim to DG and RG. T.6/20/23: 75, 149-50. At that time, RG observed that the victim "was not as happy as he normally was." Id., 75. While he previously had been a "happy, jovial baby," he did not "seem himself"

and had "lost the light that was in his eyes." Id. She also noted that the victim was vomiting periodically–more frequently than before his stay at the daycare–and he appeared paler than normal. Id., 75, 119-20. Further, she observed that the victim had bruises on his legs. Id., 153-55. She also noted that the victim would cry whenever she would give him to the defendant. Id., 160, 173. DG likewise observed that the victim's color looked different and he appeared "somber" and malnourished. Id., 205-06, 231.

RG wanted to take the victim to the hospital and had asked DG if she could do so. Id., 75-76. DG, however, told her that she could not do so and took the car keys from her. Id. RG felt that she had to obey her husband.[3] Id., 76-77.

In September 2013, DG, RG, and the victim moved out of their apartment and into the defendant's basement. Id., 77, 207-08. The defendant and his wife had proposed the move as an opportunity for DG and RG to have more time with them and to be able to hear God's voice. Id., 79. They also presented it as a way for DG and RG to save money. Id. DG's sister, KC, helped DG and RG pack up their apartment for the move.[4] T.6/21/23: 63. At that time, KC observed

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[3] In her testimony, RG denied that DG ever had been physically violent toward her or the victim. T.6/20/23: 76-77, 104-05. DG also testified that he had never struck RG, stated that he only delivered corporal punishment to the victim via "taps" on his buttocks or hand, and denied that he had ever violently shaken the victim. Id., 218-19, 225; T.6/21/23: 19.

[4] RG testified that the period when the victim stayed at the defendant's home for approximately ten days had occurred in the summer of 2013. T.6/20/23: 122-23, 149. She testified that it was probably in August 2013, because she recalled that it was before she

(continued...)

that, although the victim was acting "fine," he appeared to be cross-eyed. Id., 64, 67-68. KC also observed RG telling the victim to put his head up. Id., 64-65, 69.

When DG, RG, and the victim moved into the defendant's home, DH already was living there with the defendant and his wife. T.6/30/23: 80-81, 209. Over time, the relationship between the defendant and his wife and DG and RG became so close that, like DH, DG began calling the defendant and his wife "dad" and "mom." Id., 223-24.

After DG, RG, and the victim moved into the defendant's home, they all went on a trip with the defendant, his wife, and DH to Florida, where the defendant and his wife had a timeshare. Id., 81-82. While DG, RG, and DH traveled to Florida by plane, the defendant and his wife drove the victim there in their car. Id., 81, 210-12. On the return trip, however, the victim traveled with DG and RG on a plane. Id., 82. RG recalled that, by the time of the Florida trip, the victim's symptoms had begun to subside and he was returning to his normal self. Id., 155-56.

On October 9, 2013, DG and RG brought the victim to a pediatrician for a routine wellness visit. Id., 82-83, 213. During the

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had moved from her apartment to the defendant's basement. Id., 148-49. DG also testified that he recalled that it was when the victim was approximately nine months old in August 2013, but he conceded that it could have been in July 2013. Id., 226-27. The State presented a photograph that RG identified as depicting the victim and RG's sister-in-law, KC, in DG and RG's apartment on the date that KC helped them pack before the move. Id., 77-78; T.6/21/23: 65; St.Ex. 2. After refreshing her recollection with an e-mail, KC testified that she helped DG and RG pack on September 14, 2013. T.6/21/23: 63.

visit, the pediatrician advised them to schedule an ultrasound examination for the victim because he had an enlarged head. Id., 84; T.6/21/23: 30. The victim underwent an ultrasound several days later, which revealed pockets of fluid on both sides of his brain.[5] T.6/20/23: 84-85, 213-14; T.6/21/23: 31. Thereafter, the hospital asked DG and RG to bring the victim back to the hospital for an MRI. T.6/20/23: 85, 214.

The defendant was present when DG and RG received the call asking them to schedule the MRI. Id., 86. The defendant directed DG and RG to pray over the victim and to believe that the fluid would dissipate. Id., 214; T.6/21/23: 34. He also advised them to contact their insurance provider to confirm that their insurance would cover an MRI. T.6/20/23: 86. They did so and learned that their insurance would not cover an MRI without a referral. Id., 86, 214, 237. DG and RG then called their pediatrician, but the pediatrician refused to provide a referral. Id., 86. DG and RG, therefore, never scheduled an MRI. Id., 85-86. RG then left and went to work. Id., 86.

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[5] Dr. Nina Livingston, who performed the ultrasound on the victim, testified that the victim's head measurements had been normal through the victim's nine-month wellness visit on July 9, 2013, but by the one-year visit, "there had been this abrupt, abnormal acceleration where the head had grown abnormally in the interval." T.6/22/23: 20-24. She reported that the ultrasound found fluid in the subdural space between the brain and skull where there should not have been any fluid. Id., 24-25. She advised that the discovery of the fluid raised an immediate concern for child abuse, which caused the victim's pediatrician to call child abuse services, which referred the matter back to the hospital for further evaluation. Id., 25.

Later that evening, an ambulance and police arrived at the defendant's home and transported the victim and DG to the hospital.[6] Id., 215. The defendant also went to the hospital. Id., 216. When RG returned from work, the defendant and his wife informed her that the victim had been taken to the hospital. Id., 87, 145. They advised RG not to go to the hospital because she "wasn't able to handle it" and that DG would remain at the hospital. Id., 87. The victim then stayed at the hospital for several days before the defendant and his wife gave RG permission to go there. Id., 87, 145, 235. While at the hospital, the victim underwent an MRI.[7] T.6/22/23: 26.

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[6] After police had arrived at the defendant's home and transported the victim to the hospital, the defendant remarked to DH "that people are never going to understand the ways of God or understand disciplining children. They're not going to understand that this is a spiritual attack of Satan. They're not going to understand the ways of God or how you discipline children." T.6/21/23: 137-38. The defendant said that the State is "Satan and evil…." Id., 138.

[7] Livingston testified that the MRI found that the victim had "subdural hematomas going all the way around his brain on both sides" and "blood in another layer of the tissues … in the spinal fluid space between the brain and the subarachnoid membrane." T.6/22/23: 26-27. Two days following his admission to the hospital, the victim underwent surgery to relieve pressure on his brain. Id., 27. Livingston opined that the most common cause of subdural hematomas is trauma, though it can result from rare medical causes. Id., 28. Following a six-month battery of tests, the victim's treatment providers concluded that his injuries "more likely than not were the result of abusive head trauma" that had occurred between nine and twelve months of age. Id., 28-30. She opined that the injury had occurred more than one week

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The defendant advised RG that a detective or someone from the hospital might try to "corner" her and ask if she was "safe at home and stuff like that." T.6/20/23: 88. He directed RG not to speak to anyone without her husband present and told DG and RG what to say if anyone spoke to them. Id., 88, 93, 217.

RG spoke to a detective on October 15, 2013, with DG present. T.6/20/23: 87-88, 93. RG provided a statement, in which she said that she "[did] not know of anything that could have caused a serious injury to [her] son." Id., 94-95, 137-40; Defendant's Exhibit (Def.Ex.) A. In the statement, RG did not tell police that the victim had substantially changed when he returned to her following his stay at the defendant's home in 2013. T.6/20/23: 138; Def.Ex. A. She signed the statement, which included an affirmation that the statement was true to the best of her knowledge. T.6/20/23: 140; Def.Ex. A. She also affirmed that the statement was voluntary and that no one had forced her to make the statements. T.6/20/23: 164; Def.Ex. A. DG likewise provided a statement on that same date in which he similarly did not mention the victim's symptoms following his stay at the defendant's home, and did not say that he suspected that the defendant may have abused the victim. T.6/20/23: 239-41; T.6/21/23: 3-4; Def.Ex. D. DH also provided a statement to police at that time in which she stated that she never had seen anything abnormal in the victim's behavior, that she had neither caused nor seen any bumps or injuries to his head, and that she had

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prior to the victim's treatment at the hospital and could have been more than one month old. Id., 34-35. She further opined that his injuries were consistent with the report of abuse that police received in 2018, i.e., the incidents in which the victim fell against the granite countertop and when the defendant banged his head against the floor. Id., 33, 39-; see also St.Ex. 7 (medical records).

not seen the victim act in any way that made her think he had been abused. T.6/21/23: 162; Def.Ex. H.

One day later, on October 16, 2013, RG provided a second statement, in which she proffered excuses for the victim's injuries, including that he may have been injured when RG pulled him away from a large wave at the beach in Florida in early October 2013. T.6/20/23: 94-95, 141-43, 218; T.6/21/23: 19; Def.Ex. B. Alternatively, RG suggested that she may have injured the victim when she fell while removing him from his car seat and he struck his head against the car's roof. T.6/20/23: 142-43; Def.Ex. B. DG also suggested that the victim may have rolled off the bed at their apartment. T.6/20/23: 218; T.6/21/23: 19. RG also advised that she did not feed the victim cow's milk and only recently had realized that the victim might not have been receiving recommended levels of calcium. T.6/20/23: 143; Def.Ex. B. These excuses were ones that the defendant had directed RG to provide. T.6/20/23: 94-95, 143, 177-78. As with her first statement, RG signed the second statement, which also included an affirmation that the statement was true to the best of her knowledge.[8] T.6/20/23: 144; Def.Ex. B. She also again affirmed that her statement was voluntary and that she had not been forced to make the statements. T.6/20/23: 164; Def.Ex. B.

The defendant himself also spoke to police on October 16, 2013. T.6/23/23: 22-23. When questioned about possible causes for the victim's injury, he described one time when the victim had been sitting in the sink during a bath and had bumped the edge of the sink. Id.; T.6/22/23: 31. The defendant reported that the victim had cried briefly,

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[8] At the time RG provided the October 15 and October 16, 2013 statements, she had not yet learned from DH that the defendant had caused the victim's injuries. T.6/20/23: 176-77.

but seemed fine and uninjured. T.6/22/23: 31; T.6/23/23: 23. The defendant said that the incident had been so minor that he had not mentioned it to the victim's parents. T.6/22/23: 31; T.6/23/23: 22-23. The defendant also reported that RG had suggested that the injury may have occurred at the beach when a wave struck the victim, or when RG banged his head while taking him out of a car. T.6/23/23: 23-24; St.Ex. 10.

Subsequently, in November 2013, RG wrote a letter in support of the defendant and his wife maintaining their daycare license at a time when their daycare was under investigation. T.6/20/23: 146-47, 174; Def.Ex. C. In that letter, RG did not state that she suspected that the victim had been injured while at the defendant's daycare; rather, she opined that the daycare provided "good care." T.6/20/23: 146-47, 174. RG wrote the letter following a conversation with the defendant and his wife. Id., 147. The defendant, his wife, and DG had instructed RG to write the letter. Id., 147, 174. DG also wrote a letter at the same time, in which he asserted that the did not hold the defendant, his wife, or DH responsible for any accusations of child abuse or neglect toward the victim, and that DG was content with the victim continuing to attend the defendant's daycare. T.6/21/23: 6-7; Def.Ex. E.

DG and RG ultimately lost custody of the victim following his injuries, and he was placed in foster care by the Department of Children and Families. T.6.20/23: 95-96, 162-63, 219. RG, however, was able to see the victim during visits and medical appointments. Id., 96-97. Following a conversation with the victim's foster mother, RG came to believe that if she and DG moved out of the defendant's basement, it could increase her chances of getting her son back. Id., 99. When RG informed the defendant and his wife of her belief, the defendant told her that "it was a distraction to take [them] off of God's plan." Id., 100. The defendant advised her to disregard the thought and

accused her of being disloyal to him. Id. He further stated that RG had "opened the door to Satan and that was why [the victim] was injured in the first place." Id. The defendant blamed RG's "rebellious spirit" for the victim's injury. Id., 101.

Eventually, though, DG and RG decided to leave the defendant's church and move out of his home. Id., 101-02. RG relocated to Berlin, joined another church, and, in June 2014, regained custody of the victim. Id., 102. RG also subsequently obtained a divorce from DG. Id., 103-04. DG also moved out of the defendant's home in 2016. T.6/21/23: 8-9, 143. At that time, DG wrote a letter to the defendant and his wife thanking them for their hospitality. Id.; Def. Ex. F.

Two years later, in 2018, DH contacted RG and told her about the abuse that she had observed the defendant inflict on the victim nearly five years earlier in 2013. T.6/21/23: 194-95. At that time, RG advised DH that the statute of limitation had not yet run. Id., 195. Upon hearing this, DH decided to give another statement to police. Id.

Thereafter, on June 4, 2018, RG provided a third statement, in which she conveyed different information than she had in her 2013 statements because, at that time in 2018, she felt that she was able to speak for herself.[9] T.6/20/23: 103-04, 164-65; St.Ex. 4. Therein, RG recounted how she and DG had fallen ill in August 2013, and how the defendant and his wife had taken the victim and not allowed RG and DG to see him for approximately ten days. T.6/20/23: 166; St.Ex. 4. RG reported that the defendant and his wife said that the victim was "being rebellious and offered to help break him of his bad behavior."

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[9] RG provided her 2018 statement when the case was being "revisited" after DH had come forward and police contacted RG and asked if she would provide another statement. T.6/20/23: 129-30, 233; T.6/21/23: 23-24.

T.6/20/23: 166; St.Ex. 4. She further noted that, when the defendant eventually returned the victim to them, she immediately knew that something was wrong with him, "[i]t was like a light went off," and "[h]e was not as happy or laughing." T.6/20/23: 166; St.Ex. 4. She recounted how, for a few weeks thereafter, the victim had difficulty keeping his head up and was vomiting frequently, which was unusual. T.6/20/23: 166; St.Ex. 4. RG asserted that "[a]ll of this happened in August of 2013." T.6/20/23: 166; St.Ex. 4.

Additional facts will be set forth as necessary.

III. Argument

A. The evidence was sufficient to sustain the defendant's convictions

The defendant claims that the evidence was insufficient to sustain his convictions. Defendant's Brief (D.B.), 15-19. First, he argues that the evidence was insufficient because "[t]he only evidence of the Defendant's involvement in the injuries sustained by DG came from a single, highly incredulous witness−[DH]." Id., 16. He submits that "[n]o reasonable fact finder could have relied on [her] claims" for various reasons. Id., 16-19; see also id., 5. Second, he argues that the evidence was insufficient because it failed to establish that the crimes occurred within the statute of limitation. Id., 17, 19.

The defendant's claims lack merit because they fail to properly apply the standard of review applicable to claims of insufficient evidence. Because that standard requires this Court to construe the evidence in the light most favorable to sustaining the verdict, this Court must presume that the jury credited DH's testimony and made factual findings in accordance with her testimony. "In the course of [sufficiency of the evidence] analysis, [this Court] assume[s] that the jury credited the evidence favorable to the state and discredited the evidence favorable to the defendant." *State* v. *Hart*, 221 Conn. 595,

605, 605 A.2d 1366 (1992); accord *State* v. *Covington*, 335 Conn. 212, 222 n.8, 229 A.3d 1036 (2020); see *State* v. *Flores*, 344 Conn. 713, 764-65, 281 A.3d 420 (2022). Construed in the light most favorable to sustaining the verdict, the evidence was sufficient to prove the charges.

1. Facts pertinent to this claim

On direct examination, the State elicited acknowledgement from DH that she had not told DG and RG about the defendant's abuse of the victim at the time because she was afraid of him; T.6/21/23: 133; that she had provided a different statement to police in 2013 than she ultimately provided in 2018; id., 146; that she had engaged in a sexual relationship with the defendant; id., 122, 140; that she had written thank you notes to the defendant and called him "dad," even after witnessing his abuse of the victim; id., 140-41; and that she had continued living at the defendant's home until December 2016, after she met Jerry Savelle, the pastor who had ordained the defendant, and realized that she was in an abnormal and abusive situation with the defendant. Id., 143, 189. She stated that, when she moved out of the defendant's home in 2016, she owed him $22,000. Id., 145. She acknowledged that she had asked Savelle for the money, but that he had refused. Id. She admitted that she went to the police and provided a statement regarding the defendant's abuse of the victim after Savelle had refused to help her pay the debt. Id., 145-46. As to her initial provision of a false statement to police, and her delay in disclosing until 2018, DH testified that she had been afraid to disobey the defendant because he was her religious authority and she had instead told police exactly what he had told her to say. Id., 146. Further, she recounted how the defendant's wife had threatened her with a firearm when she had attempted to refuse the defendant's sexual advances. Id., 146-47.

On cross-examination, the defendant's counsel elicited testimony from DH that neither the defendant nor his wife ever had physically harmed her. Id., 154. She admitted that, even after moving out of the defendant's home in 2016, she had not told police about the abuse she witnessed, even though she had gone to police in 2016 and asked them to direct the defendant not to contact her again. Id., 181-82, 197. She denied that, in 2018, she had ascribed the victim's injuries to the defendant giving him an ice bath because she had overheard the defendant describing the event to police during his 2013 interview at his home. Id., 158-59. She acknowledged that she had lied in her 2013 statement to police when she denied seeing any injuries on the victim. Id., 161-62; Def.Ex. H. She also admitted that, despite being a mandated reporter as a licensed daycare worker, she had not reported the victim's abuse to the police or the Department of Children and Families. T.6/21/23: 164. She also acknowledged that, at the time of the ceremony marking her 2014 adoption by the defendant and his wife, she had read a letter praising the defendant and his wife as, inter alia, "loving and patient, slow to anger, and full of mercy." Id., 201-03. She also admitted writing numerous positive and grateful notecards, greeting cards, and letters to the defendant and his wife between 2014 and 2016. T.6/22/23: 58-81; Def.Exs. S-QQ.

DH also acknowledged that, when she provided her 2018 statement to police, she had not provided a specific date for when the victim began staying at the defendant's home. T.6/21/23: 185-86. She asserted that her ability to be more precise as to the timeline in her testimony was because she had since looked at photographs saved on her computer, which she had not done before going to the police. Id., 186. When she looked at the photograph that she recalled taking on the first day that the victim was at the defendant's home, she checked

the file properties for that image and found that she had taken the photo on August 10, 2013. Id., 186-88.

DH also acknowledged that she had begun a sexual relationship with the defendant and his wife in 2012. Id., 188-89. She recalled that, after 2016, she had told Savelle that some of her sexual encounters with the defendant had been forced on her, but also had told him that he had feelings for the defendant and liked having sex with him "in the moment." Id., 189-90. She stated that she had reported the forced sexual encounters to police in 2018, but that the defendant had not been charged. Id., 191-92. She acknowledged that she owed the defendant more than $20,000 when she moved out of his home, and agreed that she had written to Savelle in an attempt to obtain money to settle her debts.[10] Id., 192-93.

Finally, DH admitted that she had spoken about her experiences while living with the defendant on various podcasts. T.6/22/23: 97-98. She also had written a book or memoir detailing her experiences with the defendant, though she had not published the book. Id., 98-99.

After the State rested, the defendant moved for a judgment of acquittal. T.6/23/23: 105. First, he argued that the evidence was insufficient to establish that the defendant was the party who had injured the victim. Id. Second, he argued that the evidence did not satisfy the statute of limitation because, he contended, the State had not shown that the crimes had occurred within the five years preceding

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[10] DH also acknowledged that, in 2015, she had written the defendant and his wife a letter in which she had absolved them of having to pay debts that DH had incurred. T.6/21/23: 195-96. She also conceded that the defendant had not forced her to write that letter. Id., 196.

the August 10, 2018 signing of the arrest warrant, i.e., on or after August 10, 2013. Id., 106-07.

In response, the State advised that DH testified that she had taken the photograph she found on her computer depicting the victim and the defendant on August 10, 2013, and that the abuse of the victim had occurred the following day. Id., 107. The defendant conceded that the State's recitation of the evidence was accurate. Id. He argued, however, that DH's statements and testimony conflicted, in that she had said in her 2018 statement that she did not know when the abuse occurred, but then testified as to the specific date. Id.

In deciding the motion for judgment of acquittal, the court advised that it had to view the evidence in the light most favorable to the State. Id., 108. Consequently, it had to accept DH's testimony that the abuse occurred within the day or two following the August 10, 2013 photo, which fell within the statute of limitation.[11] Id. The court denied the motion. Id.

The defendant did not testify in his own defense, and he did not call any witnesses. Through cross-examination of the State's witnesses, and in closing argument, he tried to undermine their credibility. T.6/26/23: 19-20. In particular, he argued that DH was incredible because she had lied to police in 2013 and had failed to report the victim's injuries or how they happened for years. Id. He labeled her an "admitted liar." Id., 24. He also argued that the jury should discredit her based upon her demeanor on the witness stand. Id., 20. Additionally, he observed that DH had written a book about her experiences, had appeared on podcasts, and had owed the defendant thousands of dollars. Id. Based on this, he argued that DH was trying

[11] The trial court instructed the jury on the statute of limitation. T.6/26/23: 86-88, 90-91, 93-94.

to make money off the case by spinning a salacious narrative involving "love," "sex," and "exorcisms." Id., 20-21. He asked the jury to find that she was a "scorned lover" who was trying to "make a buck and use [her] 15 seconds of fame…." Id., 25. Finally, he argued that no credible evidence established that the crimes had occurred within the statute of limitation.[12] Id., 26-28. Nevertheless, the jury found the defendant guilty as charged. T.6/27/23: 14-15.

2. Standard of review and relevant legal principles

The standard of review applicable on appellate review of challenges to the sufficiency of the evidence is well established:

> In reviewing the sufficiency of the evidence to support a criminal conviction [this Court] appl[ies] a two-part test. First, [it] construe[s] the evidence in the light most favorable to sustaining the verdict. Second, [it] determine[s] whether upon the facts so construed and the inferences reasonably drawn therefrom the finder of fact reasonably could have concluded that the cumulative force of the evidence established guilt beyond a reasonable doubt….

(Brackets in original omitted.) *State* v. *Na'im B.*, 288 Conn. 290, 295-96, 952 A.2d 755 (2008); accord *State* v. *Hughes*, 341 Conn. 387, 397-98, 267 A.3d 81 (2021); see *Jackson* v. *Virginia*, 443 U.S. 307, 318-19, 99 S. Ct. 2781, 61 L. Ed. 2d 560 (1979). "This familiar standard gives full play to the responsibility of the trier of fact fairly to resolve

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[12] The defendant presented evidence that a judge signed the arrest warrant for the defendant on August 10, 2018. T.6/23/23: 62-64. Therefore, under the statute of limitation; General Statutes § 54-193, the State was obliged to prove that the defendant's crimes occurred within five years preceding that date, i.e., on or after August 10, 2013.

conflicts in the testimony, to weigh the evidence, and to draw reasonable inferences from basic facts to ultimate facts." *State* v. *Stellato*, 10 Conn. App. 447, 452, 523 A.2d 1345 (1987), quoting *Jackson* v. *Virginia*, 443 U.S. 319.

> [T]he jury must find every element proven beyond a reasonable doubt in order to find the defendant guilty of the charged offense, but each of the basic and inferred facts underlying those conclusions need not be proved beyond a reasonable doubt…. If it is reasonable and logical for the jury to conclude that a basic fact or an inferred fact is true, the jury is permitted to consider the fact proven and may consider it in combination with other proven facts in determining whether the cumulative effect of all the evidence proves the defendant guilty of all the elements of the crime charged beyond a reasonable doubt….

(Brackets in original omitted.) *State* v. *Na'im B.*, 288 Conn. 296; see also *State* v. *Niemeyer*, 258 Conn. 510, 517-19, 782 A.2d 658 (2001) (explicating sufficiency principles). Due to these standards, "[a] party challenging the validity of the jury's verdict on grounds that there was insufficient evidence to support such a result carries a difficult burden." *State* v. *Hughes*, 341 Conn. 397.

3. The evidence was sufficient

The evidence was sufficient to sustain the defendant's convictions because, contrary to the defendant's arguments, DH's testimony alone was enough to sustain the charges. As part of the governing standard of review, this Court must presume that the jury credited DH's testimony, regardless of any impeachment presented. Viewed in the light most favorable to sustaining the verdict, DH's testimony established that the defendant placed the victim in and ice bath and sprayed him with cold water, thereby causing him to flail and strike

his head against a granite countertop and, thereafter, banged the swaddled victim's head against the floor. Further, DH's testimony that the defendant's abuse of the victim occurred within the days following August 10, 2013, was sufficient to satisfy the statute of limitation.

The defendant's arguments that DH was incredible based upon his efforts to impeach her, and his implicit request that this Court should discredit her testimony, do not undermine the sufficiency of the evidence. Rather, "it is the function of the jury to consider the evidence and to judge the credibility of witnesses." (Brackets in original omitted.) *State* v. *Williams*, 350 Conn. 363, 374, 324 A.3d 760 (2024). It is well established that "[t]he credited testimony of even a single witness may be sufficient to sustain a defendant's conviction." *State* v. *Franklin*, 162 Conn. App. 78, 89, 129 A.3d 770 (2015), cert. denied, 321 Conn. 905, 138 A.3d 281 (2016); see *State* v. *Whitaker*, 215 Conn. 739, 756 n.18, 578 A.2d 1031 (1990); *State* v. *Hodge*, 153 Conn. 564, 572-73, 219 A.2d 367 (1966).

"The inquiry into whether the record evidence would support a finding of guilt beyond a reasonable doubt does not require a court to ask itself whether *it* believes that the evidence … established guilt beyond a reasonable doubt. … Instead, the relevant question is whether, after viewing the evidence in the light most favorable to sustaining the prosecution, *any* rational trier of fact could have found the essential elements of the crime beyond a reasonable doubt." (Citation omitted; emphasis in original; quotation marks omitted.) *State* v. *Boykin*, 27 Conn. App. 558, 563-64, 609 A.2d 242, cert. denied, 223 Conn. 905, 610 A.2d 179 (1992); see *Jackson* v. *Virginia*, 443 U.S. 318-19; see also *State* v. *Sivri*, 231 Conn. 115, 135-36, 646 A.2d 169 (1994). Stated differently, when reviewing a sufficiency of the evidence claim, "[t]his [C]ourt does not retry the case or evaluate the credibility of the witnesses." (Quotation marks omitted.) *State* v. *McClam*, 44

Conn. App. 198, 208, 689 A.2d 475, cert. denied, 240 Conn. 912, 690 A.2d 400 (1997); accord *State* v. *Montana*, 179 Conn. App. 261, 265, 178 A.3d 1119, cert. denied, 328 Conn. 911, 178 A.3d 1042 (2018). "Rather, [this Court] must defer to the trier of fact's assessment of the credibility of the witnesses based on its firsthand observation of their conduct, demeanor, and attitude…." *State* v. *McClam*, 44 Conn. App. 208; accord *State* v. *Juarez*, 179 Conn. App. 588, 596, 180 A.3d 1015 (2018), cert. denied, 331 Conn. 910, 203 A.3d 1245 (2019); see *State* v. *Covington*, 184 Conn. App. 332, 343, 194 A.3d 1224 (2018), aff'd, 335 Conn. 212, 229 A.3d 1036 (2020).

The defendant's arguments in support of his sufficiency claim, which simply contend that the jury should not have credited DH because she was unbelievable, misconstrue and fail to apply the governing standard of review. See *State* v. *Jagat*, 111 Conn. App. 173, 178-79, 958 A.2d 206 (2008); *State* v. *Mungroo*, 104 Conn. App. 668, 670-73, 935 A.2d 229 (2007), cert. denied, 285 Conn. 908, 942 A.2d 415 (2008). Under the standard of review, "[q]uestions of whether to believe or to disbelieve a competent witness are beyond [this Court's] review." *State* v. *Whitnum-Baker*, 169 Conn. App. 523, 527, 150 A.3d 1174 (2016), cert. denied, 324 Conn. 923, 155 A.3d 753 (2017); accord *State* v. *Jagat*, 111 Conn. App. 178; *State* v. *Montoya*, 110 Conn. App. 97, 104, 954 A.2d 193, cert. denied, 289 Conn. 941, 959 A.2d 1008 (2008). In light of the governing standard, a claim that a witness' testimony was inconsistent or unreliable "does not challenge the sufficiency of the evidence." *State* v. *Carlos C.*, 165 Conn. App. 195, 200, 138 A.3d 1090, cert. denied, 322 Conn. 906, 140 A.3d 977 (2016). Rather, it asks this Court to "examine the credibility of the [witness], which [this Court is] unable to do." Id.

For these reasons, the defendant's claim that the jury should not have, or could not have, credited DH's testimony as to the defendant's

injury of the victim or the timeframe in which it occurred is not truly a challenge to the sufficiency of the evidence. At least, it does not sound under the governing standard of review. This Court must construe the record in the light most favorable to sustaining the verdict. That entails construing the record as though the jury credited DH's testimony in all respects.

DH testified that, within the days after August 10, 2013, she observed the defendant place the victim in an ice bath and spray cold water over his head causing him to flail about and strike his head on a granite countertop and, thereafter, swaddled him and banged his head on the floor. She further testified that, thereafter, she observed bruises and other injuries on the victim. Additionally, she testified that the defendant, thereafter, decided to keep the victim from his parents for ten days so that his bruises would heal and his mother would not see them. Subsequently, when medical personnel discovered the victim's subdural hematomas, the defendant scripted the answers that DG and RG should provide if questioned about how the victim had been injured. The defendant's efforts to conceal and obfuscate the causes of the victim's injury evinced a consciousness of guilt. Construed in the light most favorable to sustaining the verdict, DH's testimony in these respects was sufficient to prove the charges against the defendant. This Court must presume that the jury either discredited the evidence that the defendant pressed in an effort to impeach her credibility, or that it otherwise did not afford that evidence much weight in its analysis. In turn this Court must presume that the jury credited DH's testimony supporting the verdicts and made factual findings consistent with those credibility determinations. So construed, the evidence was sufficient.

B. The trial court properly exercised its discretion when it denied the defendant's motion for a new trial premised on a claim that the verdict was against the weight of the evidence

Next, the defendant claims that the trial court abused its discretion when it denied his motion for a new trial. D.B., 19-22. He argues that the trial court applied an improper stander in ruling on his motion for a new trial by concluding that it could "not reject the jury's findings and substitute its own view of the evidence." Id., 20-21. Alternatively, if the court applied the proper standard, he argues that it nevertheless abused its discretion in denying the motion because the State's case depended upon an incredible witness' testimony. Id., 21-22. Both claims lack merit, first, because the trial court's decision reveals that it applied the correct standard. Second, under that standard, this Court must defer to the trial court's evaluation of the credibility of the State's witnesses. Finally, even if the trial court applied an incorrect standard, any error was harmless.

1. Facts pertinent to this claim

After the jury found the defendant guilty, on June 30, 2023, the defendant filed motions for a new trial, for a judgment of acquittal, and for arrest of judgment.[13] T.8/16/23: 3; C.App., 21-23. Following argument, the trial court denied all three motions in one oral ruling. T.8/16/23: 4-9. Specifically, after summarizing the evidence presented at trial, the court observed:

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[13] The June 30, 2023 motion for judgment of acquittal was separate from, and in addition to, the oral motion for judgment of acquittal that the defendant had advanced, and the trial court had denied, following the close of the State's case on June 27, 2023. See T.6/23/23: 105.

In the spring of 2018, [DH] reported to [the victim]'s parents and then the police that she in fact witnessed the defendant harm [the victim] while [the victim] had been in his care. She came forward realizing she could be in trouble for waiting so long to report what she saw and that she intentionally lied to police about what she knew.

[DH] was the key witness in the State's case. As to the timing of … [the victim's] injuries, she testified that in August of 2013 the defendant and his wife watched [the victim] for a ten-day period. She believed that [State's] Exhibit 6, which came into evidence, which was a picture of [the victim] leaning against the defendant's, was taken at a jazz festival that they attended in Litchfield, Connecticut.

[DH] determined that based on the timing of the picture, which she felt was dated August 10, 2013, that the inflicted trauma that she claims she witnessed by this defendant occurred within days after that.

Defense counsel extensively cross-examined [DH] over three days for a total of almost four-and-a-half hours. Defense had wide latitude to effectively cross-examine [DH] about inconsistencies in her 2013 statement and interviews where [DH] told the police she never saw the defendant or anyone harm [the victim] with her detailed trial testimony about seeing the defendant harm [the victim] on several occasions just after August 10, 2013, when the defendant and his wife watched [the victim] at their home.

The defense effectively confronted [DH] with over 40 copies of letters and cards showing unique and close relationships she maintained with the defendant and his wife both before and

after the time she claimed [the victim] suffered the injuries at the hands of the defendant.

Defense also established various grounds that [DH] might be biased against the defendant and his wife after the end of their sexual relationship. The jury heard about [DH] seeking money from the defendant before she reported the defendant's conduct to the police in the spring of 2018.

The jury also heard how [DH] prepared a draft book about her life; including, her dealing with the defendant. Defense also cross-examined both [of the victim's] parents about their access to [the victim] and their behaviors around the time that it was discovered that [the victim] suffered inflicted head trauma.

Defense was allowed to argue and the jury was instructed on third-party culpability. There was no objection to the Court's charge on third-party culpability and the defense effectively argued how the presence of reasonable doubt resulted from the third-party access to multiple caregivers; including … [the victim's] mother, [DH], and the father.

The Court also gave a detailed charge on the affirmative defense of the statute of limitations. The defense did not object to the Court's charge. The jury was instructed that if they found by a preponderance of the evidence that the defendant's conduct occurred on or before August 9, 2013, they must find the defendant not guilty based on the statute of limitations affirmative defense.

The defense was allowed wide latitude to inquire about and argue the statute of limitations defense. In all three of the motions, defense essentially are arguing that this Court should sit as a ninth juror and reject the jury's factual findings.

> *This Court cannot reject the jury's findings and substitute its own view of the evidence*. The jury's verdicts are supported by the evidence and the jury found [DH] credible and that she lacked any motive to falsely accuse the defendant who at one point acted as her father and spiritual leader.
>
> The jury rejected the inference raised by the defense that [DH] would come forward and lie and expose herself to being charged almost five years after the incident. *This Court agrees with the jury's findings* that were based on the evidence presented in this matter and, therefore, denies *all of the defendant's motions*.

(Emphasis added.) Id., 6-9; see Defendant's Appendix, 31-33.

2. Standard of review and relevant legal principles

The standard of review applied on appellate review of a trial court's denial of a motion for a new trial premised on a claim that the verdict was against the weight of the evidence is well established:

> [A] challenge to the *weight* of the evidence is not the same as a challenge to the *sufficiency* of the evidence. A sufficiency claim disputes that the state presented sufficient evidence, if found credible by the jury, to sustain the defendant's conviction…. In contrast, a weight claim does not contend that the state's evidence … was insufficient, as a matter of law, to establish the defendant's guilt beyond a reasonable doubt…. Rather, it asserts that the state's case … was so flimsy as to raise a substantial question regarding the reliability of the verdict and that there was a serious danger that the defendant was wrongly convicted….
>
> Given that these two types of claims raise fundamentally different issues, the inquiry appropriately undertaken by a

court ruling on a sufficiency of the evidence claim differs substantially from that of a court ruling on a weight of the evidence claim. In reviewing the sufficiency of the evidence, a court considers whether there is a reasonable view of the evidence that would support a *guilty* verdict.... In doing so, the court does not sit as a seventh juror who may cast a vote against the verdict based upon [its] feeling that some doubt of guilt is shown by the cold printed record.... It cannot substitute its own judgment for that of the jury if there is sufficient evidence to support the jury's verdict.... Thus, a court will not reweigh the evidence or resolve questions of credibility in determining whether the evidence was sufficient....

In contrast, a court determining if the verdict is against the weight of the evidence does precisely what a court ruling on a sufficiency claim ought not to do. That is, the court must do just *what every juror ought to do* in arriving at a verdict. The juror must use all his experience, his knowledge of human nature, his knowledge of human events, past and present, his knowledge of the motives which influence and control human action, and test the evidence in the case according to such knowledge and render his verdict accordingly.... The trial judge in considering the verdict *must do the same* ... and if, in the exercise of all his knowledge from this source, he finds the verdict to be clearly against the weight of the evidence in the case as to indicate that the jury did not correctly apply the law to the facts in evidence in the case, or were governed by ignorance, prejudice, corruption or partiality, then it is his duty to set aside that verdict and to grant a new trial.... In other words, the court specifically is required to act as a

> seventh juror because it must independently assess the credibility of witnesses and determine the weight that should be given to … evidence….
>
> Thus, because a court is required to independently assess credibility and assign weight to evidence, a weight of the evidence claim necessarily raises the issue of which courts are competent to perform those tasks. It is well settled that *only the judge who presided over the trial* where a challenged verdict was returned is legally competent to decide if that verdict was against the weight of the evidence…. Consequently, *a judge in a later proceeding, such as a direct appeal* or a habeas corpus proceeding, *is not legally competent* to decide such a claim on the basis of the cold printed record before it…. The rationale behind this rule is sound: The trial court is uniquely situated to entertain a motion to set aside a verdict as against the weight of the evidence because, unlike an appellate court, the trial court has the same opportunity as the jury to view the witnesses, to assess their credibility and to determine the weight that should be given to their evidence…. The trial judge can gauge the tenor of the trial, as an appellate court, on the written record, cannot, and can detect those factors, if any, that could improperly have influenced the jury.

(Brackets in original omitted; emphasis in original; quotation marks omitted.) *State* v. *Capasso*, 203 Conn. App. 333, 345-47, 248 A.3d 58, cert. denied, 336 Conn. 939, 249 A.3d 352 (2021); see *State* v. *Fred C.*, 167 Conn. App. 600, 606-07, 142 A.3d 1258, cert. denied, 323 Conn. 921, 150 A.3d 1150 (2016).

> It necessarily follows that appellate review of a weight of the evidence claims is greatly circumscribed. … The proper appellate standard of review when considering the action of a

> trial court granting or denying a motion to set aside a verdict and a motion for a new trial is the abuse of discretion standard…. In determining whether there has been an abuse of discretion, every reasonable presumption should be given in favor of the correctness of the court's ruling…. Reversal is required only where an abuse of discretion is manifest or where injustice appears to have been done…. [This Court] do[es] not … determine whether a conclusion different from the one reached could have been reached…. A verdict must stand if it is one that a jury reasonably could have returned and the trial court has accepted….
>
> Thus, if asked to review the trial court's ruling on a weight of the evidence claim presented to it, an appellate court is not to independently make credibility determinations or assign weight to evidence. Furthermore, [this Court's] task is not to assess the jury's credibility determinations and assessment of weight to evidence. Rather, [this Court's] task is to review, for an abuse of discretion, the trial court's assessment of the jury's credibility determinations and assignment of weight to evidence.

(Brackets in original omitted; quotation marks omitted.) *State* v. *Capasso*, 203 Conn. App. 347-48; see *State* v. *Fred C.*, 167 Conn. App. 606.

3. The defendant has failed to show that the trial court abused its discretion

The defendant claims that the trial court abused its discretion when it denied his motion for a new trial because it applied an incorrect standard. The defendant seizes upon the trial court's statement that "This Court cannot reject the jury's findings and substitute its own view of the evidence." T.8/16/23: 8. He argues that

this statement by the trial court is inconsistent with its obligation, when deciding a motion for new trial, to "do just *what every juror ought to do* in arriving at a verdict" and "use all his experience, his knowledge of human nature, his knowledge of human events, past and present, his knowledge of the motives which influence and control human action, and test the evidence in the case according to such knowledge" to determine whether the verdict is against the weight of the evidence.

The defendant's argument, however, misreads the trial court's decision, which simultaneously dispensed with a motion for judgment of acquittal and properly stated the standard applicable to that motion. The defendant also fails to account for the trial court's subsequent statement that it "agree[d] with the jury's findings that were based on the evidence presented in this matter…." Id., 9. Read together, and considering the tripartite nature of the trial court's ruling, it is plain that the court did not apply an incorrect standard.

In deciding the defendant's post-verdict motion for judgment of acquittal, the trial court properly stated that it could not "reject the jury's findings and substitute its own view of the evidence." A court deciding a motion for judgment of acquittal is obliged to construe the evidence in the light most favorable to sustaining the verdict. See *State* v. *Na'im B.*, 288 Conn. 295-96; *State* v. *Capasso*, 203 Conn. App. 345-46. It is not entitled, however, to "sit as a 'seventh juror'…." *State* v. *Crewe*, 193 Conn. App. 564, 572, 219 A.3d 886, cert. denied, 334 Conn. 901, 219 A.3d 800 (2019). To the extent that the trial court was deciding the defendant's motion for judgment of acquittal in its oral ruling, its statement of its inability to reevaluate questions of credibility was correct.

In deciding a motion for a new trial alleging that the jury's verdict was against the weight of the evidence, a trial court applies a different

standard. It is permitted to evaluate the credibility of a witness based upon its own observation of the witness' conduct, demeanor, and attitude. See *State* v. *Capasso*, 203 Conn. App. 345-47. The trial court's decision is in accordance with this standard. As noted, the trial court stated that it "agree[d] with the jury's findings that were based on the evidence presented in this matter…." T.8/16/23: 9. In doing so, the trial court applied the proper standard and evaluated the trial testimony for itself.

To the extent that the court earlier stated that it could not reject the jury's findings and substitute its own views of the evidence, that does not suggest that the trial court applied an improper standard when it denied the defendant's motion for a new trial. Rather, that simply represents that the court applied the correct standard to the motion for judgment of acquittal and then applied a separate, correct standard to the motion for a new trial.[14] There was no error and, therefore, no abuse of discretion.

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[14] In addressing whether the trial court applied the correct standard, it bears noting that the court was disposing of three motions simultaneously. C.App., 9; T.8/16/23: 3-4. While its oral decision was not as precise as may be desired, that does not suggest that the court applied an improper standard. Rather, this Court "reads an ambiguous record, in the absence of a motion for articulation, to support rather than to undermine the judgment…." *State* v. *Reynolds*, 264 Conn. 1, 29 n.21, 836 A.2d 224 (2003); see *Roberto A.* v. *Commissioner of Correction*, 229 Conn. App. 104, 118, 325 A.3d 1192, cert. denied, 350 Conn. 935, 327 A.3d 384 (2024); see also *State* v. *Richard S.*, 143 Conn. App. 596, 607, 70 A.3d 1110 ("[w]e do not presume error; the trial court's ruling is entitled to the reasonable presumption that it is correct unless the party challenging the ruling has satisfied its burden

(continued...)

For many of the same reasons, even if this Court believes that the trial court applied an improper standard when deciding the defendant's motion for a new trial, any error was harmless. As the trial court expressly stated, it agreed with the jury's findings. Therefore, even if the trial court incorrectly believed that it could not reevaluate the testimony when deciding the motion for new trial, had it done so, it would have reached the same conclusion. That is, because the trial court stated that it agreed with the jury's findings, even had it factored a reweighing of the evidence into its decision, it would have denied the motion for new trial because it agreed with the jury's credibility determinations.

IV. Conclusion

For the foregoing reasons, the State respectfully requests that this Court affirm the trial court's judgment.

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demonstrating to the contrary"), cert. denied, 310 Conn. 912, 76 A.3d 628 (2013); *State* v. *Baker*, 50 Conn. App. 268, 275 n.5, 718 A.2d 450 (same), cert. denied, 247 Conn. 937, 722 A.2d 1216 (1998).

Respectfully submitted,
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APPELLATE COURT

of the

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A.C. 46989

STATE OF CONNECTICUT

V.

ROBERT LEE NICHOLS

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Statutory provisions

General Statutes § 53-21. Injury or risk of injury to, or impairing morals of, children. Sale of children.

(a) Any person who (1) wilfully or unlawfully causes or permits any child under the age of sixteen years to be placed in such a situation that the life or limb of such child is endangered, the health of such child is likely to be injured or the morals of such child are likely to be impaired, or does any act likely to impair the health or morals of any such child, or (2) has contact with the intimate parts, as defined in section 53a-65, of a child under the age of sixteen years or subjects a child under sixteen years of age to contact with the intimate parts of such person, in a sexual and indecent manner likely to impair the health or morals of such child, or (3) permanently transfers the legal or physical custody of a child under the age of sixteen years to another person for money or other valuable consideration or acquires or receives the legal or physical custody of a child under the age of sixteen years from another person upon payment of money or other valuable consideration to such other person or a third person, except in connection with an adoption proceeding that complies with the provisions of chapter 803,1 shall be guilty of (A) a class C felony for a violation of subdivision (1) or (3) of this subsection, and (B) a class B felony for a violation of subdivision (2) of this subsection, except that, if the violation is of subdivision (2) of this subsection and the victim of the offense is under thirteen years of age, such person shall be sentenced to a term of imprisonment of which five years of the sentence imposed may not be suspended or reduced by the court.

(b) The act of a parent or agent leaving an infant thirty days or younger with a designated employee pursuant to section 17a-58 shall not constitute a violation of this section.

General Statutes § 53a-59. Assault in the first degree: Class B felony: Nonsuspendable sentences.

(a) A person is guilty of assault in the first degree when: (1) With intent to cause serious physical injury to another person, he causes such injury to such person or to a third person by means of a deadly weapon or a dangerous instrument; or (2) with intent to disfigure another person seriously and permanently, or to destroy, amputate or disable permanently a member or organ of his body, he causes such injury to such person or to a third person; or (3) under circumstances evincing an extreme indifference to human life he recklessly engages in conduct which creates a risk of death to another person, and thereby causes serious physical injury to another person; or (4) with intent to cause serious physical injury to another person and while aided by two or more other persons actually present, he causes such injury to such person or to a third person; or (5) with intent to cause physical injury to another person, he causes such injury to such person or to a third person by means of the discharge of a firearm.

(b) Assault in the first degree is a class B felony provided (1) any person found guilty under subdivision (1) of subsection (a) shall be sentenced to a term of imprisonment of which five years of the sentence imposed may not be suspended or reduced by the court and (2) any person found guilty under subsection (a) shall be sentenced to a term of imprisonment of which ten years of the sentence imposed may not be suspended or reduced by the court if the victim of the offense is a person under ten years of age or if the victim of the offense is a witness, as defined in section 53a-146, and the actor knew the victim was a witness.

General Statutes § 54-86e. Confidentiality of identifying information pertaining to victims of certain crimes. Availability of information to accused. Protective order information to be entered in registry.

The name and address of the victim of a sexual assault under section 53a-70b of the general statutes, revision of 1958, revised to January 1, 2019, or section 53a-70, 53a-70a, 53a-70c, 53a-71, 53a-72a, 53a-72b or 53a-73a, voyeurism under section 53a-189a, or injury or risk of injury, or impairing of morals under section 53-21, or of an attempt thereof, or family violence, as defined in section 46b-38a and such other identifying information pertaining to such victim as determined by the court, shall be confidential and shall be disclosed only upon order of the Superior Court, except that (1) such information shall be available to the accused in the same manner and time as such information is available to persons accused of other criminal offenses, and (2) if a protective order is issued in a prosecution under any of said sections, the name and address of the victim, in addition to the information contained in and concerning the issuance of such order, shall be entered in the registry of protective orders pursuant to section 51-5c.

General Statutes § 54-193. Limitation of prosecution for certain violations or offenses.

(a) There shall be no limitation of time within which a person may be prosecuted for (1) (A) a capital felony under the provisions of section 53a-54b in effect prior to April 25, 2012, a class A felony or a violation of section 53a-54d or 53a-169, or (B) any other offense involving sexual abuse, sexual exploitation or sexual assault if the victim of the offense was a minor at the time of the offense, including, but not limited to, a violation of subdivision (2) of subsection (a) of section 53-21, (2) a violation of section 53a-165aa or 53a-166 in which such person renders criminal assistance to another person who has committed an offense

set forth in subdivision (1) of this subsection, (3) a violation of section 53a-156 committed during a proceeding that results in the conviction of another person subsequently determined to be actually innocent of the offense or offenses of which such other person was convicted, or (4) a motor vehicle violation or offense that resulted in the death of another person and involved a violation of subsection (a) of section 14-224.

(b) (1) Except as provided in subsection (a) of this section or subdivision (2) of this subsection, no person may be prosecuted for a violation of a (A) class B felony violation of section 53a-70, 53a-70a or 53a-70b, (B) class C felony violation of section 53a-71 or 53a-72b, or (C) class D felony violation of section 53a-72a, except within twenty years next after the offense has been committed.

(2) Except as provided in subsection (a) of this section, no person may be prosecuted for any offense involving sexual abuse, sexual exploitation or sexual assault of a victim if the victim was eighteen, nineteen or twenty years of age at the time of the offense, except not later than thirty years next after such victim attains the age of twenty-one years.

(3) No person may be prosecuted for a class A misdemeanor violation of section 53a-73a if the victim at the time of the offense was twenty-one years of age or older, except within ten years next after the offense has been committed.

(c) No person may be prosecuted for any offense, other than an offense set forth in subsection (a) or (b) of this section, for which the punishment is or may be imprisonment in excess of one year, except within five years next after the offense has been committed.

(d) No person may be prosecuted for any offense, other than an offense set forth in subsection (a), (b) or (c) of this section, except within one year next after the offense has been committed.

(e) If the person against whom an indictment, information or complaint for any of said offenses is brought has fled from and resided out of this state during the period so limited, it may be brought against such person at any time within such period, during which such person resides in this state, after the commission of the offense.
(f) When any suit, indictment, information or complaint for any crime may be brought within any other time than is limited by this section, it shall be brought within such time.

Certification

The undersigned attorney hereby certifies, pursuant to Connecticut Rule of Appellate Procedure § 67-2A, that on February 6, 2025:

(1) the electronically submitted e-brief and appendix have been delivered electronically to Barry Barall Taylor & Levesque, LLC, 989 Main Street, Manchester, CT 06040, Tel. (860) 649-4400; Fax. (860) 649-4400, Email: rbarry@bbsattorneys.com;

(2) the electronically submitted e-brief and appendix and the filed paper e-brief and appendix have been redacted or do not contain any names or other personal identifying information that is prohibited from disclosure by rule, statue, court order or case law;

(3) a copy of the e-brief and appendix have been sent to each counsel of record in compliance with Section 62-7, on February 6, 2025;

(4) the e-brief and appendix being filed with the appellate clerk are true copies of the e-brief and appendix that were submitted electronically;

(5) the e-brief and appendix are filed in compliance with the e-briefing guidelines and no deviations were requested; and

(6) the e-brief contains **9,921** words; and

(7) the e-brief and appendix comply with all provisions of this rule.

/s/

TIMOTHY F. COSTELLO
Supervisory Assistant State's Attorney